DATED 8 APRIL 2019

THE COUNCIL OF THE CITY OF SALFORD

– and –

STYAL DEVELOPMENTS LIMITED

- and -

SEDDON INVESTMENTS LIMITED

AGREEMENT

pursuant to section 106 of the Town and Country Planning Act 1990 relating to land on the south east side of Priestley Road, Worsley, Salford

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City Solicitor
Salford City Council
P O Box 532
Town Hall
Albert Square
Manchester M60 2LA
Ref OUT1105/603

THIS AGREEMENT is made the 8th day of APRIL 2019

BETWEEN:

(1) **THE COUNCIL OF THE CITY OF SALFORD** of Salford Civic Centre, Chorley Road, Swinton, Manchester M27 5DA (**"the Council"**)

(2) **STYAL DEVELOPMENTS LIMITED** (incorporated in England with company number 10688912) whose registered office is at 1a Wilton Street, Chadderton, Oldham, OL9 7NZ (**"the Owner"**)

(3) **SEDDON INVESTEMENTS LIMITED** (incorporated in England with company number 10257546) whose registered office is at Arden Lea, 470 Chorley New Road, Heaton, Bolton, BL1 5AZ (**"the Mortgagee"**)

BACKGROUND

A The Council is the local planning authority for the purposes of the Act in relation to the Site and is the authority by whom the obligations hereby created are enforceable The Development will be carried out on the Site The Site is situated within the administrative boundaries of the City of Salford and this planning obligation is enforceable by the Council

B The Owner is the freehold owner of the Site registered at the Land Registry with Title Absolute under Title Number GM557337 together with but subject to all matters contained or referred to in the Property Register and Charges Register thereunder

C The Mortgagee is interested in the Site registered under title number GM557337 by virtue of the Legal Charge

D The Application was submitted to the Council for planning permission to carry out the Development in the manner set out in the plans, specifications and particulars forming part of the Application

E The Council as local planning authority is satisfied that the Development is such as may be approved by the Council under the Act and is minded to grant planning permission for the Development in accordance with the Application but having considered the SPD and the Regulations is desirous of the parties entering into this Agreement without which planning permission would not be granted

F The parties have agreed to enter into this Agreement so as to create planning obligations in favour of the Council pursuant to section 106 of the Act and to be bound by and observe and perform the covenants hereinafter contained

G The planning purpose of this Agreement is to mitigate the adverse impacts of the Development in accordance with the development plan for the area and other material considerations The Council is satisfied that the obligations in this Agreement are,

(a) necessary to make the Development acceptable in planning terms (including where appropriate, obligations necessary to mitigate the adverse impacts of the Development in accordance with the development plan for the area and other material considerations),

(b) directly related to the Development, and

(c) fairly and reasonably related in scale and kind to the Development

AGREED TERMS

1. DEFINITIONS AND INTERPRETATION

1 1 The definitions and rules of interpretation set out in this Clause apply to this Agreement

"Act" the Town and Country Planning Act 1990 as amended

"Administrative Boundaries of Salford" all the wards that together comprise the city of Salford

"Agreement" means this agreement

"Application" the application to which the Council gave the reference 18/72489/FUL for planning permission for the erection of 8 no light industrial work units together with associated landscaping car parking and construction of new vehicular access and installation of 2 4m high fence and gates,

"Commencement of Development" the date upon which the Development shall begin by the carrying out of a material operation in accordance with the provisions of section 56(4) of the Act PROVIDED THAT any works of or associated with site clearance, remediation works, environmental or archaeological investigations, site and soil surveys, erections of contractors work compound, erection of site office, erection of fencing to site boundaries, marking of site boundaries and laying out of access roads and services shall for the purposes of the agreement be deemed not to be material operations and **"Commence"**, **"Commencement"** and **"Commenced"** shall be construed accordingly

"Contributions" the Public Realm Contribution being the sum of £10,000 00 (ten thousand pounds) Index Linked

"Development" the development undertaken on the Site pursuant to the Planning Permission

"Director" the Council's Strategic Director of Environment and Community Safety or such other officer of the Council as may from time to time be nominated in writing to act in place of the Council's Strategic Director of Environment and Community Safety

"Expert" a professional expert in town planning, who is a Chartered Member of the Royal Town Planning Institute with a minimum of ten (10) years post-qualification experience

"Index Linked" adjusted on an annual basis or pro rata per diem from the date of completion of this Agreement to the relevant date of payment in accordance with the Retail Price Index and "Index Linking" shall be construed accordingly

"Interest" interest at 4% (four per cent) above the base lending rate of the Bank of England from time to time

"Legal Charge" a charge registered against title number GM557337 dated 17 September 2018,

"NPPF" the National Planning Policy Framework issued in February 2019 being the framework setting out the Government's planning policies for England and how these are expected to be applied as may be amended or any replacement of the same

"Occupation" means occupation of any part of the Development for the purposes permitted by the Planning Permission but does not include use by personnel whilst engaged in construction, fitting out or decoration of the Dwellings or occupation for marketing or display or occupation in relation to security operations and "Occupy", "Occupying" and "Occupied" shall be construed accordingly

"Plan" the plan attached to the agreement at Schedule 1 showing the Site edged red

"Planning Permission" the planning permission granted pursuant to the Application in the form as appended at Schedule 2 as may be amended by any non material amendment

"Public Realm Contribution" the sum of £10,000 00 (ten thousand pounds) Indexed Linked to be paid in accordance with the provisions of Policy OB6 of the SPD and to be directed towards the improvements to the pedestrian and cycling facilities along the A580, concentrating on the area between the Motorway and Moorside Road and/or public realm improvements to Priestley Road, Shield Drive and Holloway Drive

"Regulations" the Community Infrastructure Levy Regulations 2010 as amended

"Retail Price Index" twelve (12) month percentage change in the All Items Retail Price Index published by the Office for National Statistics Centre and in the Monthly Digest of Statistics (or contained in any official publication substituted therefor) or such other index as may from time to time be published in substitution therefor

"Site" the property described in Schedule 1 and shown for the purposes of identification only edged red on the Plan

"SPD" the City of Salford Council's Supplementary Planning Document entitled "Planning Obligations" (adopted 18 June 2015)

"UDP" the City of Salford Unitary Development Plan 2004-2016 (adopted 21 June 2006)

"Working Day" means any day except Saturday Sunday or a bank holiday and reference to "Working Days" shall be construed accordingly

1 2 The Clause headings do not affect this interpretation

1 3 Unless otherwise indicated, references to Clauses and Schedules are to Clauses of and Schedules to this Agreement and references in a Schedule to a Part or Paragraph are to a Part or Paragraph of that Schedule

1 4 References to any statute or statutory provision include reference to

1 4 1 all Acts of Parliament and all other legislation having legal effect in the United Kingdom as directly or indirectly amended, consolidated, extended, replaced or re-enacted by any subsequent legislation, and

1 4 2 any orders, regulations, instruments or other subordinate legislation made under that statute or statutory provision

1 5 Except for the provisions of Clause 9 references to the Site include any part of it

1 6 References to any party in this Agreement include the successors in title of that party In addition, references to the Council include any successor local planning authority exercising planning powers under the Act and any successor local highway authority exercising powers under the Highways Act 1980

1 7 "Including" means "including, without limitation"

1 8 Any covenant by the Owner or the Council not to do any act or thing includes a covenant not to permit or allow the doing of that act or thing

1 9 If any provision is held to be illegal, invalid or unenforceable, the legality, validity and enforceability of the remainder of this Agreement is to be unaffected

1 10 Words importing the singular meaning where the context so admits include the plural meaning and vice versa

1 11 Words of the masculine gender include the feminine and neuter genders and words denoting actual persons include companies, corporations and firms and all such words shall be construed interchangeable in that manner

1 12 Where two or more people form a party to this Agreement, the obligations they undertake may be enforced against them all jointly or against each of them individually

2. PLANNING OBLIGATION

This Agreement is made pursuant to section 106 of the Act, section 111 of the Local Government Act 1972, section 1 of the Localism Act 2011 and all other enabling legislation and is a planning obligation for the purposes of section 106 of the Act, with the intent that covenants hereinafter contained shall be enforceable by the Council acting under the powers contained in section 106 or such other enabling powers against the Owners

3. CONDITION PRECEDENT

This Agreement is conditional upon Commencement of Development save for the provisions of Clauses 9, 11, 15, 17, 18 and 19 which shall have immediate effect

4. CONDITION SUBSEQUENT

If the Planning Permission for the Development has not been implemented by the carrying out of a material operation in accordance with the provisions of sections 56, 91 and 93 of the Act or is revoked or modified in whole or in part (other than in approval of an application by or on behalf of the Owner) or

quashed or declared unlawful as a result of legal proceedings then this Agreement shall absolutely determine and become null and void but without prejudice to the rights of either party against the other in respect of any antecedent breach

5. THE OWNER'S COVENANTS

The Owner on behalf of itself and any person deriving title to any part of the Site from the Owner hereafter hereby covenant with the Council so as to bind the Site to fully observe and perform the obligations on their part contained in this Agreement including those obligations set out in Schedule 3 and hereby agree that the Site shall be permanently subject to the obligations, restrictions and provisions specified herein, such obligations being planning obligations for the purpose of section 106 of the Act

6. THE COUNCIL'S COVENANTS

The Council hereby covenants with the Owner to observe and perform the obligations on its part in this Agreement including those obligations set out in the Schedule 4

7. DISPUTE RESOLUTION

7.1 In the event of any dispute arising in connection with any of the terms of this Agreement other than a dispute involving the construction or interpretation of the terms of this Agreement or the enforcement of any decision pursuant to this Clause, the same shall unless the Council and the Owner otherwise agree be referred to an Expert to be appointed by agreement between the Council and the Owner

7 2 If the Council and the Owner are unable to agree on the appointment of an Expert within thirty (30) days of one party serving notice on the other calling for the appointment of an Expert, then an Expert shall be appointed on the application of either party to the President for the time being of the Royal Town Planning Institute

7 3 Any reference of a dispute to an Expert shall if the parties are agreed in writing be deemed to be a reference to an expert (and not to an arbitrator) whose decision shall be final and binding (save for manifest error) but shall otherwise be deemed to be a reference to an arbitrator pursuant to the Arbitration Act 1996 and any statutory amendment variation substitution or re-enactment thereof

7 4 Any party to this Agreement shall be entitled to submit to the Expert representations and cross-representations with such supporting evidence as they shall respectively consider necessary and the Expert shall have regard thereto in making his decision which shall be delivered in writing The reference of any dispute shall include authority to determine in what manner all the costs of the referral shall be paid

8. WAIVER

No waiver (whether expressed or implied) by the Council of any breach or default in performing or observing any of the covenants terms or conditions of this Agreement shall constitute a continuing

waiver and no such waiver shall prevent the Council from enforcing any of the relevant terms or conditions or from acting upon any subsequent breach or default

9. CHANGE IN OWNERSHIP & LIABILITY

9 1 The Owner agrees with the Council to give the Council immediate written notice of any change in ownership of any of its interest in the Site occurring before all the obligations under this Agreement have been discharged such notice to give details of the transferee's full name and registered office (if a company or usual address if not) together with (unless the purchase relates to the entirety of the Site) the area of the Site or unit of occupation purchased by reference to a plan

9 2 No person shall be liable for any breach, non performance and non observance of the covenants, obligations and restrictions contained in this Agreement after it shall have parted with its entire interest in the Site (or that part of the Site to which the breach relates) but without prejudice to liability for any subsisting breach arising prior to parting with such interest nor shall this hinder or preclude the Council's rights as the Local Planning Authority to require that the breach, non performance or non observance be remedied after that person has parted with its interest in the Site

10. COUNCIL'S CONSENT OR APPROVAL

Where in this Agreement the consent, agreement or approval of the Council is required to be given by the Council, the Council confirms that such consent, agreement or approval shall not be unreasonably withheld or delayed provided that this shall not fetter the proper discretion of the Council

11. LOCAL LAND CHARGE AND LAND REGISTRY ENTRY

11 1 This Agreement is a Local Land Charge and shall be registered as such by the Council

11 2 For the purpose of noting this Agreement on the title of the Owner registered under Title Number GM557337 at the Land Registry the Owner will on the date hereof provide the Council with completed Form AN1 (or any replacement of this form) together with either a cheque made payable to the Land Registry to cover the requisite fee or alternatively with the Owner's solicitor's completed Land Registry account key number details inserted in the form The Council will arrange for the AN1 (or any replacement of this form) to be registered at the Land Registry and the Owner will supply the Council with a copy of the amended register as soon as reasonably practicable following their receipt by the Owner from the Land Registry

11 3 The Council will upon receipt of a written request of the Owner or its successors in title, at any time after the obligations set out herein have been fulfilled in their entirety, issue written confirmation thereon and thereafter cancel all related entries in the register of local land charges

11 4 The costs of registration and cancellation pursuant to clauses 11 3 above shall be met by the Owner if requested by the Council

12. NON-PROHIBITION ON DEVELOPMENT

Nothing in this Agreement shall prohibit or limit the right to develop any part of the Site in accordance with a planning permission (other than the Planning Permission) granted (whether or not on appeal) after the date of this Agreement

13. THE CONTRACTS ACT

Save as provided in respect of the successors in title to the Site or any successor to the relevant statutory functions of the Council this Agreement shall not be enforceable by any third party pursuant to the Contracts (Rights of Third Parties) Act 1999 and no third party shall acquire any benefit rights or claims whatsoever pursuant thereto

14. COMMUNICATION

14 1 Any notice or document to be served on or sent pursuant to this Agreement shall either be delivered personally or sent by recorded delivery service

14 1 1 to the Council and addressed to the Director at the Council's address first above written,

14 1 2 to the Owner and the Mortgagee at the address of their registered offices

15. FEES

15 1 The Owner shall prior to completion of the Agreement pay to the Council its legal fees reasonably and properly incurred in preparation of the Agreement,

15 2 Receipt by the Council of the payment of such sum shall not create any lawyer-client type contractual relationship between the Council and the Owner nor absolve the Owner from any liability or obligation imposed upon them by the terms of this Agreement or by statute or at common law

16. INTEREST

If any payment due under this Agreement is paid late Interest will be payable from the date payment is due to the date that payment is received

17. JURISDICTION

This Agreement is governed by and interpreted in accordance with the law of England

18. COMPLETION

The provisions of this Agreement (other than this clause which shall be of immediate effect) shall be of no effect until this Agreement has been dated

19. MORTGAGEE

The Mortgagee consents to this Agreement being entered into with the intention that its interest in the Site in the form of the Legal Charge will be bound by the terms of this Agreement as if this Agreement had been executed and registered as a local land charge before the execution of the Legal Charge

EXECUTED as a deed by the parties on the day and year first hereinbefore appearing

SCHEDULE 1

The Site

Land and buildings on the south east side of Priestley Road, Worsley, M28 2LX, Salford shown for the purposes of identification edged red on the Plan

Wise Seddon

LOCP



LOCATION PLAN

(A4)

1:1000

THE Common Seal of THE CITY OF SALFORD was affixed in the Presence of:

AUTHORISED SIGNATORY

entered in Book 7964

SCHEDULE 2

Draft Planning Permission for application referenced 18/72489/FUL

THE COUNCIL OF THE CITY OF SALFORD
CIVIC CENTRE
CHORLEY ROAD
SWINTON, M27 5BW

TOWN AND COUNTRY PLANNING ACT 1990

DECISION NOTICE : GRANT

PLANNING PERMISSION 18/72489/FUL

Date of Decision: 1 March 2019 SIGNED

Date of Issue: On behalf of the Council

Applicant:

Mr William Fairfiled
c/o Mr Jerry Taylor
J T Architecture
38 Broughton Way
Broughton Way
Osbaldwick
York
YO10 3BG

Part 1 – Particulars of Application: **Date of Application:** 28 September 2018

Location of development:
Land To East Of Priestley Road
Wardley Industrial Estate
Worsley
M28 2LX

Particulars of development:
Erection of 8 no. light industrial work units (Use Class B1(c)/B2) together with associated landscaping, car parking and construction of new vehicular access and installation of 2.4m high fence and gates

Part 2 – Particulars of Decision:

The Council of the City of Salford hereby gives notice in pursuance of the provisions of the Town and Country Planning Act 1990 that **permission has been granted** for the carrying out of the development referred to in Part 1 hereof in accordance with the application and plans submitted subject to the following condition(s):

1. The development must be begun not later than three years beginning with the date of this permission.

   `Reason: Required to be imposed by Section 91 of the Town and Country Planning Act 1990 (as amended).

2. The development hereby permitted shall be carried out in accordance with the following approved plans:

   Location Plan
   Proposed Site and Floor plan 2188 03 rev D
   Proposed Floor Plan 2188 04 Rev B

DRAFT

Reason: For the avoidance of doubt and in the interest of proper planning.

3. Notwithstanding any description of materials in the application no above ground construction works shall take place until samples or full details of materials to be used externally on the building(s) have been submitted to and approved in writing by the Local Planning Authority. Such details shall include the type, colour and texture of the materials. Only the materials so approved shall be used, in accordance with any terms of such approval.

Reason: In order to ensure a satisfactory appearance in the interests of visual amenity in accordance with Policy DES1 of the City of Salford Unitary Development Plan and the requirements of the National Planning Policy Framework.

4. a) Notwithstanding the details shown on the approved plans, the development hereby permitted shall not be occupied until full details of both hard and soft landscaping works have been submitted to and approved in writing by the Local Planning Authority. The details shall include the formation of any banks, terraces or other earthworks, hard surfaced areas and materials, boundary treatments, external lighting, planting plans, specifications and schedules (including planting size, species and numbers/densities), existing plants/ trees to be retained and a scheme for the timing/ phasing of implementation works.

(b) The landscaping works shall be carried out in accordance with the approved scheme for timing/ phasing of implementation or within 18 months of first occupation of the development hereby permitted, whichever is the later.

(c) Any trees or shrubs planted or retained in accordance with this condition which are removed, uprooted, destroyed, die or become severely damaged or become seriously diseased within 5 years of planting shall be replaced within the next planting season by trees or shrubs of similar size and species to those originally required to be planted, unless the Local Planning Authority gives its consent in writing to any variation.

(d) The Landscaping Plan shall be designed, wherever possible, in accordance with the recommendations and mitigation section of the Ornithological Summary (Breeding Birds) by Brooks Ecological dated August 2018.

Reason: To ensurethat the siteis satisfactorily landscaped having regard to its location and the nature of the proposed development and in accordance with Policies DES1 and DES9 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

5. No above ground works shall take place until a strategy of surface water drainage for the site using sustainable drainage methods and which includes details of how water quality will be improved, and how existing surface water discharge rates reduced, has been submitted to and approved in writing by the Local Planning Authority. The approved strategy shall be implemented prior to first occupation or use of the development hereby approved unless alternative timescales have been agreed in writing as part of the strategy.

Reason: To ensure a satisfactory method of surface water disposal to reduce the risk of flooding elsewhere in accordance with policy EN19 of the City of Salford Unitary Development Plan and seeks to provide betterment in terms of water quality and surface water discharge rates and meets requirements set out in the following documents;
NPPF,
Water Framework Directive and the NW River Basin Management Plan
The national Planning Practice Guidance and the Non-Statutory Technical Standards for Sustainable Drainage Systems (March 2015)
Manchester, Salford, Trafford Strategic Flood Risk Assessment (SFRA) (2011) and associated technical guidance
Environment Agency Pollution Prevention Guidelines (now withdrawn)
Flood Risk Assessment/SuDS Requirements for new developments (Salford's SuDS Checklist)

6. Surface water discharge rate is restricted to 50% of the existing discharge rate or to greenfield runoff, whichever is greater, as per the user guide to the Salford City Council SFRA.

Reason: To ensure a satisfactory method of surface water disposal to reduce the risk of flooding elsewhere in accordance with policy EN19 of the City of Salford Unitary Development Plan and seeks to provide betterment in terms of water quality and surface water discharge rates and meets requirements set out in the following documents;
NPPF,
Water Framework Directive and the NW River Basin Management Plan
The national Planning Practice Guidance and the Non-Statutory Technical Standards for Sustainable Drainage Systems (March 2015)
Manchester, Salford, Trafford Strategic Flood Risk Assessment (SFRA) (2011) and associated technical guidance
Environment Agency Pollution Prevention Guidelines (now withdrawn)
Flood Risk Assessment/SuDS Requirements for new developments (Salford's SuDS Checklist)

7. The car park shall include suitable SuDS treatment train prior to discharge or an equivalent petrol/oil interceptor with the addition of a hydrodynamic separator if discharging to a sensitive receptor.

Reason: To ensure a satisfactory method of surface water disposal to reduce the risk of flooding elsewhere in accordance with policy EN19 of the City of Salford Unitary Development Plan and seeks to provide betterment in terms of water quality and surface water discharge rates and meets requirements set out in the following documents;
NPPF,
Water Framework Directive and the NW River Basin Management Plan
The national Planning Practice Guidance and the Non-Statutory Technical Standards for Sustainable Drainage Systems (March 2015)
Manchester, Salford, Trafford Strategic Flood Risk Assessment (SFRA) (2011) and associated technical guidance
Environment Agency Pollution Prevention Guidelines (now withdrawn)
Flood Risk Assessment/SuDS Requirements for new developments (Salford's SuDS Checklist)

8. Foul and surface water shall be drained on separate systems.

Reason: To secure proper drainage and to manage the risk of flooding and pollution in accordance with policy EN19 of the City of Salford Unitary Development Plan and seeks to provide betterment in terms of water quality and surface water discharge rates and meets requirements set out in the following documents;
NPPF,
Water Framework Directive and the NW River Basin Management Plan
The national Planning Practice Guidance and the Non-Statutory Technical Standards for Sustainable Drainage Systems (March 2015)
Manchester, Salford, Trafford Strategic Flood Risk Assessment (SFRA) (2011) and associated technical guidance
Environment Agency Pollution Prevention Guidelines (now withdrawn)
Flood Risk Assessment/SuDS Requirements for new developments (Salford's SuDS Checklist)

9. Prior to the installation of any external plant or equipment or any new openings / outlets, the applicant shall submit an assessment of the noise from the plant and equipment to demonstrate the rating level (LAeq,T) from such equipment associated with the development, when operating simultaneously, shall not exceed the typical background noise level (LA90,T) by more than -5 dB at any time when measured at the boundary of the nearest noise sensitive premises. Noise measurements and assessments shall be carried out according to BS 4142:2014 "Methods for rating and assessing industrial and commercial sound". 'T' refers to any 1 hour period between 07.00hrs and 23.00hrs and any 15 minute period between 23.00hrs and 07.00hrs.

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

10. During the period of construction, should contamination be found on site that has not been previously identified, no further works shall be undertaken in the affected area. Prior to further works being carried out in the affected area, the contamination shall be reported to the Local Planning Authority within a maximum of 5 days from the discovery, a further contaminated land assessment shall be carried out, appropriate mitigation identified and agreed in writing by the Local Planning Authority. The development shall be undertaken in accordance with the agreed mitigation scheme.

Reason: To prevent pollution of the water environment and to ensure the safe development of the site in the interests of the amenity of future occupiers in accordance with Policy EN17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

11. Notwithstanding the details shown on the drawings hereby approved, details of secure and sheltered cycle parking shall be submitted to and approved in writing by the Local Planning Authority. The approved cycle parking shall be implemented and made available for its intended use prior to the occupation of the development hereby approved and shall be retained thereafter.

Reason: To encourage more sustainable modes of travel in accordance with policies ST14, A2 and A10 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

12. No development shall take place, including any works of excavation or demolition, until a Construction Method Statement has been submitted to, and approved in writing by, the local planning authority. The approved Statement shall be adhered to throughout the construction period. The Statement shall include:

a. the times of construction activities on site which, unless agreed otherwise as part of the approved Statement,
b. shall be limited to between 8am-6pm Monday to Friday and 9am-2pm Saturday only (no working on Sundays or Bank Holidays). Quieter activities which are carried out inside buildings such as electrical works, plumbing and plastering may take place outside of agreed working times so long as they do not result in significant disturbance to neighbouring occupiers;
c. the spaces for and management of the parking of site operatives and visitors vehicles;
d. the storage and management of plant and materials (including loading and unloading activities);
e. the erection and maintenance of security hoardings including decorative displays and facilities for public viewing, where appropriate;
f. measures to prevent the deposition of dirt on the public highway; measures to control the emission of dust and dirt during demolition/construction;
g. a scheme for recycling/disposing of waste resulting from demolition/construction works;
h. measures to minimise disturbance to any neighbouring occupiers from noise and vibration, including from any piling activity; measures to prevent the pollution of watercourses; and
i. a community engagement strategy which explains how local neighbours will be kept updated on the construction process, key milestones, and how they can report to the site manager or other appropriate representative of the developer, instances of unneighbourly behaviour from construction operatives. The statement shall also detail the steps that will be taken when unneighbourly behaviour has been reported. A log of all reported instances shall be kept on record and made available for inspection by the local a planning authority upon request.

Reason: In the interests of the amenity of neighbours in accordance with policies DES7 and EN17 of the Salford Unitary Development Plan and the NPPF.

Reason for pre-commencement condition: Any works on site could harm the amenity of neighbouring occupiers if not properly managed so details of the matters set out above must be submitted and agreed in advance of works starting.

13. The vehicle parking, servicing and other vehicular access arrangements shown on the approved plans to serve the development hereby permitted shall be made available for use prior to the development being brought into use (or in accordance with a phasing plan which shall first be agreed in writing with the local planning authority) and shall be retained thereafter for their intended purpose.

Reason: In the interest of highway safety and the free flow of traffic and in accordance with policies A2, A8 and A10 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

14. Prior to occupation of the development hereby approved a Service Management Scheme shall be submitted to, and approved by, the Local Planning Authority and adhered to thereafter.

Reason: In the interest of highway safety and the free flow of traffic and in accordance with policies A2, A8 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

15. No development shall be started until all the retained trees within (or overhanging) the site as shown on [Arboricultural Method Statement (AMS), Drawing No: P.1123.18.03, dated 06-12-2018], have been surrounded by substantial fences. Such fences shall be erected in accordance with the fence specification submitted at [AMS, Drawing No: P.1123.18.03] in the positions as shown at [AMS, Drawing No: P.1123.18.03] and shall remain until all development is completed and no work, including any form of drainage or storage of materials, earth or topsoil shall take place within the perimeter of such fencing.

Reason: In accordance with TD1 of the City of Salford Unitary Development Plan and the Trees and Development SPD.

Reason for pre-commencement condition: In order to provide details how construction works will be carried out close to protected/retained trees without causing damage to the crown or the root protection area.

16. The development hereby approved shall be carried out in accordance with the submitted Arboricultural Method Statement (AMS) [AMS, Drawing No: P.1123.18.03]

Reason: In accordance with TD1 of the City of Salford Unitary Development Plan and the Trees and Development SPD.

17. The felled trees (G1 and G2) shall be replaced in accordance with a tree replacement scheme which shall be submitted to and approved in writing by the Local Planning Authority. The scheme shall be submitted prior to the commencement of development and shall include details of: tree species; tree sizes (including the minimum height and circumference of stem at 1m from the ground level); plan indicating the location of the replacement trees, a timetable for tree planting and details of aftercare.

Reason: In accordance with TD1 of the City of Salford Unitary Development Plan and the Trees and Development SPD.

18. The development shall be carried out in accordance with the following Reasonable Avoidance Measures at all times during the construction phase of the development:
All excavations on site should be covered at night or a ramp should be provided to allow these species to exit excavations. All excavations should be checked for mammals/amphibians/reptiles each morning prior to the re-commencement of any works.
All exposed new pipework and drains should be capped at night so as to avoid trapping amphibians.
All excavated materials/waste should be stored in skips or similar and not on the ground where it could be used as a refuge/resting area by amphibians. Alternatively all waste should be removed from site daily.
All stored building materials that might be used as temporary resting places by amphibians should be stored off the ground on pallets or similar.
Scaffold footings will be place on sand to prevent newts taking temporary refuge underneath the footings.
If any large holes, which could have been dug by badger) are discovered during site clearance, work should stop immediately and advice sought from a suitably qualified ecologist.
If any of the species are found during the works then they should be removed carefully to a place of safety outside of the works area.

Reason: To ensure the favourable status of protected species in compliance with Paragraph 175 of the NPPF.

19. A scheme for the provision of external lighting shall be submitted to and approved in writing by the Local Planning Authority. Such a scheme shall include full details of the locations, design, luminance levels, light spillage and hours of use of, and columns for, all external lighting within the site and the approved scheme shall be implemented in full prior to the occupation of development.

Reason: To protect ecological interests in accordance with Nature Conservation and Biodiversity Supplementary Planning Document and to ensure that development is safe from crime in accordance with the provisions of policy DES10 of the Unitary Development Plan and the Salford City Council Supplementary Planning Document, Design and Crime.

20. The premises shall only be open for trade or business between the hours of 08:00 - 17:30 Monday to Friday, 08:00 - 14:00 Saturdays and at no time on Sundays or public holidays.

Reason: In the interest of the amenity of residents in accordance with policy EN 17 of the City of Salford Unitary Development Plan and the National Planning Policy Framework.

Statement of conformity with Article 35 of The Town and Country Planning (Development Management Procedure) (England) Order 2015
The Local Planning Authority worked positively and proactively with the applicant to identify various solutions during the application process to ensure that the proposal comprised sustainable development and would improve the economic, social and environmental conditions of the area and would accord with the development plan. These were incorporated into the scheme and/or have been secured by planning condition. The Local Planning Authority has therefore implemented the requirement in Paragraph 38 of the NPPF.

Notes to Applicant:

1. This permission only authorises the carrying out of development which is entirely in accordance with the approved plans and other details submitted. In the event of any intended amendments to these details and plans, including the siting of the development in relation to site boundaries or adjacent properties, the developer must first contact the Development Management Section before any development is commenced for advice regarding the necessity to obtain further permission.

2. This Notice **does not** constitute an approval under the Building Regulations 2000 and you should contact the Local Authority Building Control Section for further information. For further information visit the City of Salford web sitewww.salford.gov.uk under the heading 'Living'.

3. Please note that any new building(s) or any existing building(s) being converted into separate dwellings (including apartments etc.) orbusinesses will legally require an official postal address. This is enforceable under the Public Health Act 1925. The Developer should contact Salford City Council who will process the postal addressing. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

4. This Notice **does not** constitute an approval of the highway layout for adoption in accordance with the Highways Act 1980 and you should contact the Local Authority Engineering Design Section for further information regarding the requirements for highway adoption. For further information visit the City of Salford web site www.salford.gov.uk under the heading 'Living'.

5. The applicant is advised that they have a duty to adhere to the regulations of Part 2A of the Environmental Protection Act 1990, the National Planning Policy Framework 2012 and the current Building Control Regulations with regards to contaminated land. The responsibility to ensure the safe development of land affected by contamination rests primarily with the developer.

6. The applicant intends to obtain a water supply from United Utilities for the proposed development, we strongly recommend they engage with us at the earliest opportunity. If reinforcement of the water network

is required to meet the demand, this could be a significant project and the design and construction period should be accounted for.

To discuss a potential water supply or any of the water comments detailed above, the applicant can contact the team at DeveloperServicesWater@uuplc.co.uk.

Please note all internal pipework must comply with current Water Supply (water fittings) Regulations 1999.

If the applicant intends to offer wastewater assets forward for adoption by United Utilities, the proposed detailed design will be subject to a technical appraisal by an Adoptions Engineer as we need to be sure that the proposal meets the requirements of Sewers for Adoption and United Utilities' Asset Standards. The detailed layout should be prepared with consideration of what is necessary to secure a development to an adoptable standard. This is important as drainage design can be a key determining factor of site levels and layout. The proposed design should give consideration to long term operability and give United Utilities a cost effective proposal for the life of the assets. Therefore, should this application be approved and the applicant wishes to progress a Section 104 agreement, we strongly recommend that no construction commences until the detailed drainage design, submitted as part of the Section 104 agreement, has been assessed and accepted in writing by United Utilities. Any works carried out prior to the technical assessment being approved is done entirely at the developers own risk and could be subject to change.

Should this planning application be approved the applicant should contact United Utilities regarding a potential water supply or connection to public sewers. Additional information is available on our website

http://www.unitedutilities.com/builders-developers.aspx.

7. Highway Works to be provided through a Section 50 or 278 Agreement of the Highways Act 1980
Highway works, remedial measures and supporting Traffic Regulation Orders to be introduced in vicinity of the development shall include the following:
o The works on the adopted highway will be delivered by an S50/S278 agreement and full construction detail drawing should be submitted and approved by the Highway Authority;
o Regarding to adopted carriageway and footways, any amendments to the carriageway need to be re-instated using similar materials;
o Redundant access points reinstated as continuous footway, renewal of footway surrounding the developments;
o Existing adopted street lighting and existing services within the footway and carriageway to be either diverted or protected in agreement with relevant authorities;
o The applicant to have further discussions with the council's traffic management team to deliver a suitable traffic management scheme ensures various SCC schemes can be incorporated with the development proposals; and
o Dilapidation Survey should be undertaken prior and after the completion of the development to ensure the adopted footway and carriageway is not damaged by construction vehicles.

Useful contacts:

Dilapidation Survey:
o Developer shall contact John Horrocks/Pam Docksey to arrange a full dilapidation/Condition Survey of all adopted highways surrounding the site prior to works commencing on site. Tel: 0161 603 4046/4006

Highway Permits/Licensing:
o Applications for all forms of highway permits/licenses shall be made in advanced of any works being undertaken on the adopted highway Note: NO boundary fencing shall be erected or positioned on any part of the adopted highway with first seeking the relevant permits/licenses from the Local Highway Authority Tel: 0161 603 4046/4006

General Highway Information:
o Requests for general Information regarding the adopted highway network shall be directed to the Local Highway Authority - John Horrocks- 0161 603 4046/4006

S278 and S38 Works

o The Developer shall contact Neil Ashmall to arrange for the S278 element of the development. Neil Ashmall 0161n779 4883.
o The Developer shall contact John Proctor to arrange for the S38 element of the development. John Proctor: 0161 779 4894.

Traffic Management:
o The Developer shall contact Rob Owen for the Traffic Management element of the development. Rob Owen - Tel: 0161 779 4848.

8. The applicants attention is drawn to the recommendations of the rime Impact Statement (CIS) (Ref:2018/0800/CIS/01 Dated:05/11/2018).

9. No removal of or works to any trees, shrubs or brambles hall take place during the main bird breeding season 1st March and 31st August inclusive, unless a competent ecologist has undertaken a careful, detailed check of vegetation for active birds' nests immediately before the vegetation is cleared and provided written confirmation that no birds will be harmed and/or that there are appropriate measures in place to protect nesting bird interest on site. Any such written confirmation should be submitted to the local planning authority.

10. **STANDING ADVICE - DEVELOPMENT LOW RISK AREA**

The proposed development lies within a coal mining area which may contain unrecorded coal mining related hazards. If any coal mining feature is encountered during development, this should be reported immediately to the Coal Authority on 0345 762 6848.

Further information is also available on the Coal Authority website at:
www.gov.uk/government/organisations/the-coal-authority

This Standing Advice is valid from 1st January 2019 until 31st December 2020

Salford City Council would like to encourage all residents and businesses to help make the City a better place to live and work by transforming hard grey areas into living, planted places that enrich lives. The Royal Horticultural Society is running a campaign to "Green Grey Britain" which the City Council fully supports. We are asking all applicants to view the RHS website at www.rhs.org.uk and to pledge support for the campaign through the implementation of landscaping schemes/proposals which form part of planning permissions granted by the City Council.

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse planning permission for the proposed development or to grant it subject to conditions, then you can appeal to the First Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice except where one of the following applies:
    - If this is a decision to refuse planning permission for which an enforcement notice has been served for the same or substantially the same land and development either within 2 years prior to the date on which the application was submitted or before the application was determined, if you want to appeal against your local authority's decision then you must do so within 28 days of the date of this notice; or
    - If this is a decision to refuse planning permission and an enforcement notice is served for the same or substantially the same land and development after the date of this notice, if you want to appeal against your local authority's decision then you must do so within 28 days from the date the enforcement notice is served, unless the effect would be to extend the period beyond the usual time limit for cases not involving an enforcement notice (i.e. 6 months of the date of this notice).

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- Appeals must be made using a form which you can get from the Planning Inspectorate at Temple Quay House, 2 The Square, Temple Quay, Bristol, BS1 6PN or online at www.planningportal.gov.uk/pcs.
- The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.
- In practice, the Secretary of State does not refuse to consider appeals solely because the local planning authority based their decision on a direction given by him.

Purchase notices

- If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.
- In these circumstances, the owner may serve a purchase notice on the Council in whose area the land is situated. This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act

Compensation

In certain circumstances compensation may be claimed from the Local Planning Authority if permission is refused or granted subject to conditions by the Secretary of State on appeal or on reference of the application to him/her.
These circumstances are set out in section 114 and related provisions of the Town and Country Planning Act 1990.

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SCHEDULE 3

The Owner's General Covenants

The Owner hereby covenants with the Council as follows

1 To notify the Council in writing within 7 (seven) Working Days of Commencement of Development

2 To pay to the Council the Contribution Indexed Linked immediately upon Commencement of Development and not to Commence allow or permit the Commencement of Development until the said payment has been paid to the Council

SCHEDULE 4

The Council's Covenants

The Council hereby covenants with the Owner as follows

1 To use the Contribution received for the sole purpose of the projects identified in this Agreement and for no other purpose

2 At the written request of the Owner to provide written confirmation of the discharge of the obligations contained in this Agreement when satisfied that such obligations have been performed

3 That none of the projects or infrastructure items that the Contribution are funding or contributing to have been funded or contributed to by more than four other s 106 Agreements since 6 April 2010 and that the Council has reviewed its records and is satisfied that the Contributions are is not in breach of the requirements of Regulation 123 of the Community Infrastructure Levy Regulations 2010,

4 In the event that any part of the Contribution paid to the Council has not been spent by the Council within 10 years of the date on which the Contribution were paid to the Council the Council shall on the written request of the Owner repay to the party/person which paid the Contribution such unspent balance (excluding any such sums in respect of which though not yet expended the Council has contractually committed to expend) together with interest on that balance calculated from the date of payment to the Council to the date of repayment

5 The Council shall provide written details of any expenditure incurred by the Council using the Contribution within 15 Working Days of a written request to do so from the party/person who paid those Contribution to the Council

6 To issue the Planning Permission within 2 Working Days of the date hereof

THE COMMON SEAL of **THE COUNTY OF THE CITY OF SALFORD**

was affixed in the presence of:

AUTHORISED SIGNATORY

Signature: .....

Name (in block capitals) M. CARRUTHERS-WATT

Number in Seal Book 7964

EXECUTED AS A DEED by **STYAL DEVELOPMENTS LIMITED**

DIRECTOR

Signature: .....

Name (in block capitals) WILLIAM FARRELL

IN THE PRESENCE OF:

Signature:

Name: (in block capitals)

Address:

ALAN BERRY
SRA No. 146725
Solicitor
Salehs Solicitors
Didsbury House
748 Wilmslow Road
Didsbury
Manchester M20 2DW

EXECUTED AS A DEED by **SEDDON INVESTMENTS LIMITED**

DIRECTOR

Signature

Name (in block capitals)

IN THE PRESENCE OF:

Signature

Name (in block capitals)

Address

ALAN BERRY
SRA No. 146725
Solicitor
Salehs Solicitors
Didsbury House
748 Wilmslow Road
Didsbury
Manchester M20 2DW